

Justification Review Document
for Other than Full and Open Competition - FAR Part 6

Program/Equipment: United States Army Regional Cyber Center – Continental United States Information Technology Services Requirement

Authority: 10 United States Code 3204(a)(1) as implemented by FAR 6.302-1(a)(2)(iii)(B), "Only one responsible source and no other supplies or services will satisfy agency requirements" – for DoD, NASA, and the Coast Guard, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements."

Amount: [REDACTED]

Prepared by:

Typed Name: [REDACTED]

Contract Specialist

E-Mail: [REDACTED]

Date: 02/20/2025

Contracting Officer:

Typed Name: [REDACTED]

E-Mail: [REDACTED]

Date: 02/20/2025

Technical Representative:

Typed Name: [REDACTED]

Title: Acquisition Management Specialist

E-Mail: [REDACTED]

Date: 02/20/2025

Requirements Representative:

Typed Name: [REDACTED]

Title: Deputy Director

E-Mail: [REDACTED]

Date: 02/20/2025

Controlled by: Army

Controlled by: ACC-APG Huachuca Division

CUI Category (is): General Procurement and Acquisition

Limited Dissemination Control: [REDACTED]

POC: [REDACTED]

(Source Selection Information – See FAR 2.101 and 3.104-4)

[REDACTED]

Reviews

I have reviewed this justification and find it adequate to support other than full and open competition.

Legal Counsel

Typed Name:

E-Mail:

Signature: _____ Date: _____

[REDACTED]

United States Army Regional Cyber Center - Continental United States Information Technology Services

[REDACTED]

Justification and Approval
for Other than Full and Open Competition – FAR Part 6

1. Contracting Activity: U.S. Army Contracting Command, Aberdeen Proving Ground (ACC-APG), Huachuca Division, 2133 Cushing Street, Building 61801, Room 3410, Fort Huachuca, AZ 85613-7070.

2. Description of Action: The United States Army Regional Cyber Center – Continental United States (RCC-CONUS) requests approval for a follow-on bridge to modify the existing Cost Plus Fixed Fee (CPFF) contract, W91RUS19C0014, awarded to [REDACTED] for [REDACTED] Information Technology support services. The proposed modification is for four additional months of services. The short-term extension is required to keep these critical Information Technology (IT) Support Services in place while affording the Government sufficient time to award the re-compete. This modification will be funded using Fiscal Year 25 Operations and Maintenance Army funds.

This action is a follow-on to contract W91RUS-19-C-0014. The last modification was not competed under the authority of Federal Acquisition Regulation (FAR) 6.302-1(a)(iii)(B). The previous contract's procurement history is addressed in Section 10 below. See paragraph 10b of this Justification and Approval (J&A) for the full narrative included in paragraph 7. Actions to Increase Competition, of the previous J&A, approved by the Senior Contracting Official. Based on an analysis of that previous paragraph 7, this J&A [REDACTED] does not require one-level above approval authority elevation in accordance with DFARS 206.304 and PGI 206.304 for a failure to complete planned actions.

3. Description of Supplies/Services: The Government has an ongoing need for Information Technology support services for RCC-CONUS to provide the full range of operations, maintenance, and defensive functions of the Army's portion of the Global Information Grid (GIG). The three interdependent tasks necessary to operate the GIG are (1) Enterprise System Network Management, (2) Information Assurance/Computer Network Defense (CND), and (3) Content Staging/Information Dissemination Management.

The RCC-CONUS is responsible for the network security of all U.S. Army installations within the Continental United States. In addition to this security mission, the RCC-CONUS also monitors and manages the systems that support or enable Army operations. These systems have users in every theater worldwide. Any lapse in service would result in communication failure jeopardizing the Army's Unclassified but Sensitive Internet Protocol Router Network (NIPRNet) and Secure Internet Protocol Router

(Source Selection Information – See FAR 2.101 and 3.104-4)

[REDACTED]

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[REDACTED]

Network (SIPRNet) CONUS portion of the GIG, and the NIPRNet and SIPRNet LandWarNet.

The Independent Government Estimate (IGE) provided for this action on 4 February 2025 is based on historical information on the current contract monthly invoicing costs, escalated for inflation by [REDACTED]. The IGE was created by the Contracting Officer's Representative (COR), [REDACTED]. The anticipated costs and period of performance is:

Current Contract Period of Performance:

30 May 2019 to 28 February 2025 [REDACTED]

Bridge Period of Performance:

Base Period: 1 March 2025 to 30 June 2025 [REDACTED]

The workload of the RCC-CONUS is divided into four major service areas: Defensive Cyberspace Operations (DCO) Division, the Department of Defense Information Network Operations Division, the Sustainment Division Mission, and the Theater Operations Division Mission.

The contractor will support the RCC-CONUS mission to operate, maintain and defend the Army's GIG by providing management, administrative and technical support services. The contractor shall provide all personnel, management, and other related services. The Government will require Information Technology Infrastructure Library (ITIL) compliant contractor performance on tasks identified in the Performance Work Statement (PWS) in both the classified and unclassified network environments. Work includes current and new systems at various lifecycle staged and any future applications/systems not currently identified.

4. Authority Cited: 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1(a)(2)(iii)(B), "Only one responsible source and no other supplies or services will satisfy agency requirements" – for DoD, NASA, and the Coast Guard, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements."

5. Reason for Authority Cited: The RCC-CONUS is responsible for the network security of all U.S. Army installations within the Continental United States. In addition to this security mission, the RCC-CONUS also monitors and manages the systems that support or enable Army operations. These systems have users in every theater

(Source Selection Information – See FAR 2.101 and 3.104-4)

[REDACTED]

worldwide. Any lapse in service would result in communication failure jeopardizing the Army's Unclassified but Sensitive Internet Protocol Router Network (NIPRNet) and Secure Internet Protocol Router Network (SIPRNet) CONUS portion of the GIG, and the NIPRNet and SIPRNet LandWarNet. These services are essential to safeguarding our national security and essential for delivering IT services to our Warfighters. Should these communications, which are necessary for daily Army operations as well as contingencies and exercises, be interrupted, the natural consequence would be mission failure. This would result in degradation of Command-and-Control Readiness as well as serious injury to the global Army organization and impose a great risk to human safety, including bodily harm to our Army soldiers and civilians. The Government would not be able to achieve the 2022 National Defense Strategy by not being able to deter regional adversaries like Russia, the People's Republic of China, and sustain warfare competency in the Continental United States.

The main delay in executing the follow-on contract is due to unforeseen delays in the execution of the competitive re-compete effort. It had been determined that the PWS needed to be rewritten to provide the best overall value to the Government, which was not previously anticipated. The PWS used for the initial award of this requirement under W91RUS-19-C-0014, was written in 2019 and no longer accurately depicts the current RCC-C mission. The scope of the mission had changed and increased since the previous attempts to award a follow-on effort have been solicited, awarded, and subsequently subject to multiple protests. These changes to the mission requirements must be captured and bid against as a part of a new follow-on award. Since November 2023, the Contracting Office and requiring activity have been working to update the requirements package and solicit for this new follow-on award, which is intended to be procured via the Computer Hardware Enterprise Software Solution (CHESS) Information Technology Enterprise Solutions – 3 Services (ITES-3S), via an RFP issued on 25 October 2024. This process has consisted of multiple efforts to capture industry feedback to the maximum extent practicable, to include the execution of an Industry Day event, and multiple Draft RFP amendments. As such, the Government currently anticipates award of this new follow-on effort on or about 28 March 2025, however this proposed bridge modification is required to keep the above-described critical services in place while the follow-on effort and transition period are completed.

For the reasons above, this mission is critical to the U.S. Army and cannot withstand a gap in service. An extension to the existing contract needs to be put in place before 28 February 2025. Any delay in modifying the existing contract to [REDACTED] and the only source currently positioned to successfully perform the requirements of this short-term extensions successfully, would result in a significant lapse in critical services that would result in serious harm to the Government.

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[REDACTED]

The immediate need is for approximately [REDACTED] personnel with the high-level security and certification qualifications.

The required contractor employees must possess ITIL knowledge who meet specific technical and functional certification requirements. Each current contract employee has at least a secret security clearance. In addition, employee qualifications must reflect Personnel Security (IT Level) and Information Assurance (IA) Workforce Specialty requirements, aligning the IA functional responsibilities and access levels to the contract tasks, in accordance with Information Assurance Workforce Improvement Program Department of Defense (DoD 8570.01M) and Cyberspace Workforce Management and Information Management Information Assurance Army Regulation 25.2 (AR 25-2). Also, all of the key technical personnel require computing environment (CE) certifications at performance start date for [REDACTED]. Most of the CE certifications (Global Information Assurance Certification (GIAC) Certified Forensic Analyst, GIAC Certified Incident Handler, GIAC Certified Intrusion Analyst, GIAC Certified Penetration Tester, and Certified Ethical Hacker) required for the key technical personnel are highly desirable to the Government and industry.

Furthermore, it is not in the Government's best interest to bring on a new contractor for such a short duration, as the Government is currently anticipating the award of a four-year competitive award for these services in March 2025. First, a change in contractor for such a short-term commitment will likely result in the loss of essential DoD 8570 certified contract employees making it difficult for a new contractor to meet full performance by the contract start date. Second, only three contractors have performed this work as the prime contractor for over twenty years. Market research from the follow-on recompetes determined that most contractors do not have project management experience managing a regional cyber center of this scope, size, and complexity for Network Enterprise Technology Command (NETCOM). The lack of management experience as a prime vendor for similar scope, size, and complexity support creates risk at the program level in assuring performance across a broad mission set. This indicates a huge learning curve and creates too much performance risk for RCC-CONUS. In addition, the lack of NETCOM experience creates operational risk during phase in and the first business year when the Offeror needs to learn, align, and integrate into existing processes and procedures for managing and securing Defense Information Networks Army (DoDIN-A).

The incoming contractor must have employees who meet CE certification standards on contract start date for all of the key technical personnel. Receipt of Department of Defense, IA certification is a process that could take between six months to a year. In addition to IA certifications background investigations for security clearances will take at least four weeks. A minimum 30-day phase-in period is needed for the transition of complex mission tasks and personnel. The RCC-CONUS contract requires highly

(Source Selection Information – See FAR 2.101 and 3.104-4)

technical and diverse employees to possess secret and top-secret clearances. Changing contractors for this short duration bridge would seriously disrupt mission performance and result in duplicative costs, which would not be recouped. Finally, as stated above, the impact and harm to the Government would be substantial if this justification is not approved.

Background/Facts Leading to Need for Bridge Services:

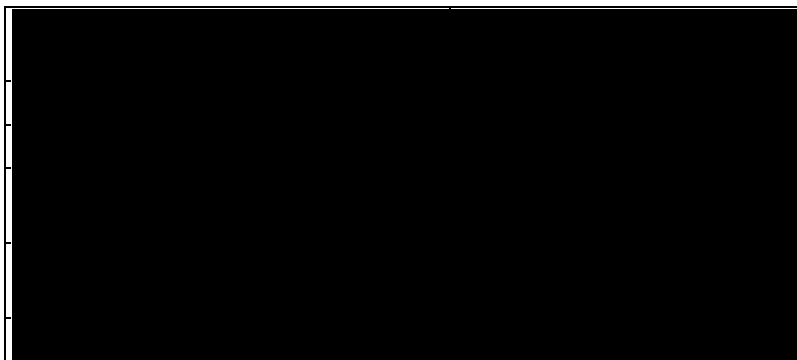
On 03 June 2019, contract W91RUS19C0014 was awarded to [REDACTED] as a small business set-aside. The requirement was competitively awarded as a cost-plus fixed fee type contract for Information Technology Services and Support in support of the RCC-CONUS, which expires on 28 February 2025. It is anticipated that the competitive follow-on contract will be awarded by 28 March 2025, with full performance beginning 01 July 2025. Therefore, it is necessary to modify the existing contract for the period of 01 March 2025 through 30 June 2025 to ensure critical services remain in-place and uninterrupted while the planned follow-on is awarded and through completion of any potential transition period.

The initial competitive re-compete task order was awarded on 20 March 2023, and two protests were filed at U.S. Government Accountability Office (GAO), resulting in the need for the Government to take corrective action.

The subsequent competitive re-compete task order was awarded on 28 September 2023, and two protests were filed at GAO. The Government performed corrective action, which included: (1) re-writing the requirements package; (2) resoliciting; and (3) making a new award decision based on an updated requirements package and RFP evaluation criteria.

As such, this proposed modification will keep the above-described critical services in place while the new follow-on effort is re-awarded.

Acquisition milestones for the **bridge action** are provided in the table below:



(Source Selection Information – See FAR 2.101 and 3.104-4)

[REDACTED]

[REDACTED]

Acquisition milestones for the **re-compete task order** are provided in the table below:

[REDACTED]

(Source Selection Information – See FAR 2.101 and 3.104-4)

[REDACTED]

Continuing with the incumbent contractor for an additional four-month bridge extension is in the best interest of the Government and provides the most cost-effective use of Government resources. Additional time beyond the four-month period of performance is not anticipated to be required. The follow-on competitive task order will begin at the end of the performance period of the bridge extension. The bridge extension shall not exceed four months.

6. Efforts to Obtain Competition: The Contracting Officer published the Sources Sought on 14 January 2025 that closed on 29 January 2025 to <https://SAM.gov> that is required by FAR 5.201, DFARS 205.205-71, DFARS 206.302-1(d), and DFARS Procedures, Guidance, and Information (PGI) 206.302-1(d) with the Government's intent to issue a modification to allow for continued performance until the competitive follow-on is awarded.

a. Effective competition. Effective competition is not applicable because this is a sole source selection.

b. Subcontracting competition. Subcontracting competition is achieved as the current contractor has subcontract agreements in place with multiple subcontractors and is required to adhere to the FAR clause of 52.219-14, Limitations On Subcontracting.

7. Actions to Increase Competition: The Contracting Office is currently working on the follow-on requirement, anticipated for award on or about 28 March 2025, using fair opportunity procedures described in FAR 16.505 under CHES ITES-3S as a task order competition.

8. Market Research: A Source Sought was posted on 14 January 2025 that closed on 29 January 2025 to <https://SAM.gov>. Two companies responded to the Sources Sought. [REDACTED] submitted a capability statement. [REDACTED]

[REDACTED] was an interested vendor that did not submit a capability statement. Additional Market Research efforts included a review of information gathered as a result of the on-going competitive follow-on effort. The Government is aware that a full and open competition would result in multiple potential offers. In response to the Sources Sought, one vendor, [REDACTED] limited one page capability statement does not demonstrate experience in managing a contract mission of similar scope, size, and complexity. [REDACTED] capability statement does not demonstrate DCO experience.

Market research from the follow-on recompetete determined that most contractors do not have project management experience managing a regional cyber center of this scope, size, and complexity for Network Enterprise Technology Command (NETCOM). The

lack of management experience as a prime vendor for similar scope, size, and complexity support creates risk at the program level in assuring performance across a broad mission set.

9. Interested Sources: [REDACTED] expressed interest in the sources sought for this short-term bridge action.

10. Other Facts:

a. Procurement history.

(1) Contract numbers and dates of all awarded contracts for these same requirements.

<u>Contract Number:</u>	<u>Competitive Status:</u>
W91RUS-14-C-0015	This contract was a competitive contract awarded on 20 June 2014 as a total small business set aside on FedBizOpps and received twelve offerors.
W91RUS-18-C-0007	This sole source bridge contract was awarded to [REDACTED] on 4 January 2018 to allow time for a competed re-compete to be awarded. This bridge contract used the authority 10 U.S.C. 2304(c)(2) as implemented by FAR 6.302-2 Unusual and Compelling Urgency.
W91RUS-19-C-0014	This contract was a competitive contract, PoP 30 May 2019 through 30 November 2022 as a total small business set aside on FedBizOpps and received 21 offers.
W91RUS-19-C-0014 [REDACTED]	This sole source bridge modification was awarded to [REDACTED] PoP 01 DEC 2022 through 31 AUG 2023 to allow time for a competed re-compete to be awarded. This bridge contract used the authority 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1(a)(2)(iii)(B) Unacceptable delays in fulfilling the agency's requirements.
W91RUS-19-C-0014 [REDACTED]	This sole source bridge modification was awarded to [REDACTED] on 01 SEP 2023 through 29 FEB 2024 to allow time for a competed re-compete to be awarded after

(Source Selection Information – See FAR 2.101 and 3.104-4)

	corrective action was performed. This bridge contract used the authority 10 U.S.C. 3204(a)(2) as implemented by FAR 6.302-2 Unusual and Compelling Urgency.
W91RUS-19-C-0014 [REDACTED]	This sole source bridge modification was awarded to [REDACTED] on 01 MAR 2024 through 28 FEB 2025 to allow time for a competed re-compete to be awarded. This bridge contract used the authority 10 U.S.C. 3204(a)(1) as implemented by FAR 6.302-1(a)(2)(iii)(B) Unacceptable delays in fulfilling the agency's requirements.

b. Other facts.

The Contracting Office is currently working on the follow-on requirement, anticipated for award on or about 28 March 2025, using fair opportunity procedures described in FAR 16.505 under CHES ITES-3S as a task order competition.

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Acquisition Management Specialist

Date: ___2/20/2025___

Signature: _____

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[REDACTED]

Deputy Director

Signature: _____ Date: ___2/20/2025___

(Source Selection Information – See FAR 2.101 and 3.104-4)

[REDACTED]

13. Fair and Reasonable Cost Determination:

I hereby determine that the anticipated cost to the Government for this contract action will be fair and reasonable based upon cost analysis including comparison of proposed prices with historical prices, the IGE, and pricing under current contract. In accordance with FAR 15.403-4 certified cost or pricing data will be required.

[REDACTED]
Contracting Officer

Signature: _____ Date: 2/20/2025

14. Contracting Officer Certification:

I certify that this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]
Contracting Officer

Signature: _____ Date: 2/20/2025

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[REDACTED]

Approval

Based on the foregoing justification, [REDACTED] the modification of Contract W91RUS-19-C-0014 for RCC-CONUS Information Technology Services, in the estimated amount of [REDACTED] for an extension of the period of performance for four months. This action is made on another than full and open competition basis pursuant to the authority of 10 United States Code 3204(a)(1) as implemented by FAR 6.302-1(a)(2)(iii)(B), "Only one responsible source and no other supplies or services will satisfy agency requirements" – for DoD, NASA, and the Coast Guard, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements", subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

[REDACTED]
Command Advocate for Competition

Date:

(Source Selection Information – See FAR 2.101 and 3.104-4)